

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

The Intestate Estate of the John P. Harmon represented by its)
Administrator/Administratrixes, Mr. Stanley Harmon et al. of the City of)
Zwedru, Grand Gedeh County, Republic of Liberia.....Appellants)

Versus) APPEAL

Goldy William Saydee, also of the City of Zwedru, Grand Gedeh)
County, Republic of Liberia.....Appellee)

GROWING OUT OF THE CASE:

The Intestate Estate of John P. Harmon represented by its)
Administrator/Administratrixes, Mr. Stanley Harmon et al. of the City of)
Zwedru, Grand Gedeh County, Republic of Liberia.....Plaintiffs)

Versus) EJECTMENT

Goldy William Saydee, also of the City of Zwedru, Grand Gedeh)
County, Republic of Liberia.....Defendant)

Heard: April 16, 2025

Decided: May 29, 2025

MR. JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

This case has its genesis in an ejectment action filed by the Intestate Estate of John P. Harmon, appellant herein before the Seventh Judicial Circuit, Grand Gedeh County, against Goldy William Saydee, appellee herein on November 14, 2012. The facts as culled from the records show that the late John P. Harmon and his wife, Victoria Harmon both were residents of Zwedru City, Grand Gedeh County; that during their lifetime, they acquired several pieces of real property while residing in the county but fled the country to Ghana during the civil war in 1990 where both of them died seized of both real and personal property. However, following their deaths, one of their sons, Stanley Harmon returned to Zwedru City, Grand Gedeh County, in 2012 along with some family members and realized and discovered that the William Godly Sayedee, appellee/plaintiff herein, had encroached upon and occupied one and half lot of their parents property for which they instituted a summary proceedings to recover real property against the appellee in the magisterial court in Grand Gedeh County.

However, during trial, appellee/plaintiff introduced a title deed based on the sale of the selfsame property made to him by one Julia Harmon who happens to be one of the children of John P. Harmon and Victoria Harmon for which the magistrate subsequently dismissed the summary proceedings action for lack of jurisdiction. The appellant/plaintiff, thereafter, instituted an action of ejectment against the appellee/defendant in the Seventh (7th) Judicial Circuit, Grand Gedeh County.

The law issues were heard and disposed of, and the case was ruled to trial on February 22, 2013, of which trial begun on February 27, 2013.

During the trial, the appellant produced three witnesses while the appellee also produced three witnesses. Arguments were heard pro et con and after considering both oral and documentary evidence, the jury returned a verdict of liable against the appellee/defendant, adjudging the appellee/defendant liable in ejectment to the appellant/plaintiff.

The appellee, defendant being disappointed with the jury's verdict filed a motion for new trial arguing that the jury's verdict is contrary to the evidence presented during the trial; that three of the appellant/plaintiff's relatives and representatives received money from him (appellee/defendant) and singed receipts and delivered a deed to him for the said property more than four years ago and that the same people came back to repudiate their said actions; that equity would not allow such action to be validated. The appellee/defendant then prayed the court to overturn the jury's verdict and award a new trial as the said verdict of the jury is totally against the weight of the evidence presented.

The appellant/plaintiff filed its resistance arguing that the jury's verdict is supported by the evidence presented and that the doctrine of equity will not lie and as such the judge should dismiss the said motion.

The trial judge heard arguments pro et con on the motion and ruled granting the said motion and setting aside the jury's verdict and awarded a new trial on grounds that said deed issued to the appellee/defendant was issued to the appellee/defendant after it was agreed upon by some children of the late John P. Harmon to sell the said land to the appellee/defendant; that during the trial, none of the children rebutted or denied any or all of the interaction as alleged by the appellee/defendant with some children of the late John P. Harmon in which they sold the land to the appellee/defendant and as such the jury's verdict is contrary to the weight of the evidence adduced during the trial.

The appellant/plaintiff noted his exceptions to this ruling of the trial judge and announced an appeal to the Honorable Supreme Court. The appellant/plaintiff filed an eleven (11) count bill

of exceptions basically and primarily alleging that trial judge erred when he set aside the jury's verdict and awarded a new trial on grounds that the verdict reached by the jury was contrary to the evidence produced; the appellant/plaintiff strongly argued in its bill of exceptions that the trial judge erred in every way and he ignored all the evidence that it (appellant/plaintiff) adduced during trial when he set aside the jury's verdict.

From a review of the facts and the evidence as culled from the certified records of this case, this Court says that there is one issue determinative of this case which are:

1. Whether or not the setting aside of a jury verdict is appealable?

This Court answers this issue in the negative. A motion for new trial is a motion that challenges the verdict of the jury and if granted as in this instant case, the jury is disbanded and a new trial is ordered proceeded with, this decision is not final but interlocutory and a challenge to same is only cognizable or the remedy maybe found only in a remedial process before the Justice in Chambers and not by regular appeal. Moreover, the setting aside of a jury verdict is largely in the discretionary power of a trial judge and same will not be disturbed by this Court except upon showing of abuse of discretion by the trial judge. We do not see such abuse in this case; however, assuming that that discretion was abused, the remedy cannot and should not be an appeal directly to this Court, as earlier stated, such ruling is interlocutory and as such the remedy should be sought in a remedial process.

An interlocutory judgment is one which lacks finality, it is judgment which "speaks between", that is it does not speak the last word which the court may be required to speak in the case; a judgment rendered in the middle of a cause upon some plea, proceeding, or default, which is only intermediate and does not finally determine or complete the suit.

A judgment is further interlocutory when it is made before a final decision, for the purpose of ascertaining a matter of law or fact preparatory to a final judgment, or which determines some preliminary or subordinate point or plea, or settles some step, question, or default arising in the process of the case, but does not adjudicate the ultimate rights of the parties or puts finality the case out of court. *BALLENTINE'S LAW DICTIONARY* 658 (3' ed.)

On the other hand, "a judgment is said to be a final judgment which determines and disposes of the whole merits of the cause before the court by declaring that the plaintiff is or is not entitled to recovery by the remedy chosen, or completely and finally disposes of a branch of a cause which is separate and distinct from parts thereof." *Korvah et al. v. Bong Mining Co.*, 34 LLR 158,163 (1986).

Still going further, a final judgment may be further explained to mean a judgment which determines a question in such a manner as to terminate or end the matter so completely as to preclude all future inquiries concerning the truth itself. For purposes of appeal, a final judgment is one which terminates the litigation between the parties on the merits and leaves nothing to be done but to enforce by execution what has been determined.

In the mind of the Court, the setting aside of the jury verdict by the trial judge does not bring a finality to the said trial or the said case, in fact, the trial judge set aside the jury's verdict and ordered a new trial which clearly shows that the matter was not brought to finality and as such the remedy to such action is only through a remedial process and not an appeal as it is the law in vogue that an appeal in this jurisdiction can only be announced from the final ruling terminating the case from the lower court. *Korvah et al. v. Bong Mining Co.*, 34 LLR 158,164 (1986).

A granting of a motion of new trial not being a final ruling, therefore certainly cannot be appealable directly before the Supreme Court.

WHEREFORE AND IN VIEW OF THE FOREGOING, the judgment of the court below is hereby affirmed, and the appeal is hereby denied and dismissed. The Clerk of this Court is ordered to send a mandate to the lower court commanding the judge therein to resume jurisdiction and give effect to the judgment emanating from this Opinion. IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING COUNSELLOR FESTUS K. NOWON, SR., APPEARED FOR THE APPELLANT. COUNSELLOR ALBERT S. SIMS OF THE JUSTICE ADVOCATES & PARTNERS, INC., APPEARED FOR THE APPELLEE.

Judgment affirmed.